

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
JAHAN NORMAN,

Plaintiff,

-against-

CITY OF NEW YORK, DETECTIVE MATTHEW
BORDEN, BADGE NUMBER UNKNOWN, POLICE
OFFICER DEMETRIOS KIEKATOS, BADGE
NUMBER 4676, AND SEVERAL UNIDENTIFIED
POLICE OFFICERS ASSIGNED TO
THE 114TH PRECINCT,Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates Queens
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**Plaintiff resides at
1156 Route 374
Dannemora, New York 12929

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
August 20, 2015TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
JAHAN NORMAN
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007DETECTIVE MATTHEW BORDEN,
BADGE NUMBER UNKNOWN,
POLICE OFFICER DEMETRIOS KIEKATOS,
BADGE NUMBER 4676,
114th Precinct
34-16 Astoria Boulevard
Astoria, New York 11103

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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JAHAN NORMAN,

Plaintiff,

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CITY OF NEW YORK, DETECTIVE MATTHEW
BORDEN, BADGE NUMBER UNKNOWN, POLICE
OFFICER DEMETRIOS KIEKATOS, BADGE
NUMBER 4676, AND SEVERAL UNIDENTIFIED
POLICE OFFICERS ASSIGNED TO
THE 114TH PRECINCT,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff JAHAN NORMAN by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 4676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT, respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.
3. Upon information and belief, that at all times hereinafter mentioned, Defendant DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.
4. That at all times hereinafter mentioned, Defendant DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.
5. That at all times hereinafter mentioned, Defendant DETECTIVE MATTHEW

BORDEN, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of his office as a police officer for said county and city.

6. Upon information and belief, that at all times hereinafter mentioned, Defendant POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, was employed by Defendant CITY OF NEW YORK as a police officer.

7. That at all times hereinafter mentioned, Defendant POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, acted within the scope of his employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendant POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of his office as a police officer for said county and city.

9. Upon information and belief, that at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

10. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

11. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of their office as police officers for said county and city.

12. That on or about June 18, 2014, at approximately 5:00 P.M., Plaintiff JAHAN NORMAN was in a motor vehicle stopped at, or near, the intersection of 24th Street and 35th Avenue in the County of Queens, City and State of New York (hereinafter the “INCIDENT LOCATION”) when the vehicle was suddenly approached by plainclothes members of the New

York City Police Department including, but not limited to, Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 4676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT.

13. That at the aforementioned time and place, Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 4676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT, without first identifying themselves as police officers, ordered the occupants of the vehicle, including Plaintiff JAHAN NORMAN, to exit the vehicle

14. That at the aforementioned time and place, Plaintiff JAHAN NORMAN, unsure of the Defendants' identity, hesitated to comply, at which time Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 4676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT pulled Plaintiff JAHAN NORMAN from the motor vehicle, and without just cause or provocation, proceeded to strike, punch and kick Plaintiff.

15. That at the aforementioned time and place, Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT, without any just cause or provocation, willfully, wantonly, maliciously, and recklessly assaulted, attacked and verbally abused Plaintiff JAHAN NORMAN.

16. That, as a result of this unprovoked assault, Plaintiff JAHAN NORMAN sustained injuries including, *inter alia*, a cervical fracture, as well as lacerations, bruises and injuries to his face, shoulders, wrists, and knees.

17. That at the aforementioned time and place, Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT handcuffed Plaintiff JAHAN NORMAN and placed him under arrest.

18. That following his arrest, Plaintiff JAHAN NORMAN was transported to Queens Hospital Center (82-68 164th Street, Jamaica, New York 11432) for initial treatment of his injuries.

19. That within 90 days of the happening of the accident, but more than 30 days prior to the commencement of this action, Plaintiff JAHAN NORMAN duly presented, served, and filed a Notice of Claim, in writing, upon Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

20. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT.

21. Upon information and belief, Defendant CITY OF NEW YORK waived its right to a Municipal Hearing pursuant to section 50-h of the General Municipal Law because Plaintiff JAHAN NORMAN is incarcerated.

22. This action is commenced within one year and ninety days after the cause of action arose.

**AS AND FOR A FIRST CAUSE OF ACTION UNDER
NEW YORK STATE LAW FOR ASSAULT**

23. Plaintiff JAHAN NORMAN repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

24. The aforementioned acts of Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT, placed Plaintiff JAHAN NORMAN in apprehension of imminent harmful and offensive bodily contact.

25. As a result of the conduct of Defendants DETECTIVE MATTHEW BORDEN,

BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT, Plaintiff JAHAN NORMAN has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A SECOND CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR BATTERY**

26. Plaintiff JAHAN NORMAN repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

27. Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT touched Plaintiff JAHAN NORMAN in a harmful and offensive manner.

28. Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT did so without privilege or consent from Plaintiff JAHAN NORMAN.

29. As a result of the conduct of Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT, Plaintiff JAHAN NORMAN has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

30. Plaintiff JAHAN NORMAN repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

31. The level of force employed by Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE

114TH PRECINCT was objectively unreasonable and in violation of Plaintiff JAHAN NORMAN's constitutional rights.

32. As a result of the aforementioned conduct of Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT, Plaintiff JAHAN NORMAN was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

33. Plaintiff JAHAN NORMAN repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

34. Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

35. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to: (a) using force on individuals who are no longer resisting lawful authority; and (b) using force in an unreasonable, unnecessary, and unjustified manner.

36. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff JAHAN NORMAN.

37. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff JAHAN NORMAN as alleged herein.

38. The foregoing customs, policies, usages, practices, procedures and rules of the City of

New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff JAHAN NORMAN as alleged herein.

39. Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff JAHAN NORMAN's constitutional rights.

40. All of the foregoing acts by defendants deprived Plaintiff JAHAN NORMAN of federally protected rights including, but not limited to, the right:

- A. Not to have excessive force imposed upon him;
- B. To be free from unlawful search;
- C. To receive equal protection under the law.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

41. Plaintiff JAHAN NORMAN repeats, reiterates and realleges each and every allegation contained in this complaint.

42. Each and every individual Defendant had an affirmative duty to intervene on Plaintiff JAHAN NORMAN's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

43. As a result of the aforementioned conduct of the individual Defendants, Plaintiff JAHAN NORMAN's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

44. Plaintiff JAHAN NORMAN repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

45. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants DETECTIVE MATTHEW BORDEN, BADGE

NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

46. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

47. Plaintiff JAHAN NORMAN repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

48. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff JAHAN NORMAN. Further, the Defendants exhibited a lack of that degree of due care

which prudent and reasonable individuals would show.

49. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT, in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff JAHAN NORMAN.

50. As a result of the foregoing, Plaintiff JAHAN NORMAN is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff JAHAN NORMAN demands judgment against Defendants CITY OF NEW YORK, DETECTIVE MATTHEW BORDEN, BADGE NUMBER UNKNOWN, POLICE OFFICER DEMETRIOS KIEKATOS, BADGE NUMBER 9676, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 114TH PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
August 20, 2015

A handwritten signature in blue ink, appearing to read "Tracie A. Sundack", is written over a horizontal line.

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
JAHAN NORMAN
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

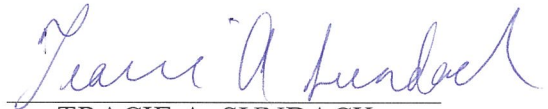
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
August 20, 2015



TRACIE A. SUNDACK